



United States
Attorney's Office
Western District of Virginia



Former Senior Partner at McKinsey & Company Pleads Guilty

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For Immediate Release

U.S. Attorney's Office, Western District of Virginia

Martin Elling Obstructed Justice Related to His Work with Purdue Pharma

ABINGDON, Va. – A former senior partner at McKinsey & Company, a global management consulting firm based in New York, N.Y., that last month agreed to pay \$650 million to resolve criminal and civil investigations into the firm's consulting work with opioids manufacturers, including Purdue Pharma, L.P., pled guilty today to obstructing justice related to his work on Purdue matters.

Martin Elling, 60, a U.S. citizen residing in Bangkok, Thailand, waived his right to be indicted and pled guilty today to a one-count Information charging him with knowingly destroying records with the intent to impede, obstruct, and influence the investigation and proper administration of a matter within the jurisdiction of the United States Department of Justice.

"Today's guilty plea moves us forward in holding accountable not only those corporations responsible for the opioid crisis in America, but also the executives that have exacerbated the tragedy," Acting United States Attorney Zachary T. Lee said today. "This prosecution would not have been possible without the efforts of many- including the U.S. Attorney's Offices in Boston and here in the Western District of Virginia, but also the countless hours of work by the Medicaid Fraud Control Unit of the Virginia Attorney General's Office, the Department of Justice Civil Division, FDA, HHS, the Veteran's Administration-OIG and the FBI. A matter this significant takes a team and we had a great one. I am thankful to each and every person who put in the time to make this prosecution happen."

"Mr. Elling's guilty plea is a significant step in our ongoing efforts to address the full scope of misconduct that fueled the opioid epidemic. By attempting to obstruct and influence the investigation into McKinsey's work with Purdue Pharma, Mr. Elling sought to undermine justice and shield evidence about his and McKinsey's role in this devastating public health crisis," said Joshua S. Levy, United States Attorney for the District of Massachusetts. "The Department of Justice remains steadfast in our resolve

to ensure that those whose conduct contributed to this epidemic are held fully accountable for their actions."

"Knowingly destroying records and documents to impede a government investigation into the unlawful prescribing of opioids impairs the ability of law enforcement to do its job and endangers the public health," said Special Agent in Charge George A. Scavdis of the FDA Office of Criminal Investigations Metro Washington Field Office. "We will continue to investigate and bring to justice those who attempt to thwart these important investigations and whose actions put profits over patient safety."

"On the heels of a historic \$650 million judgment against the world's largest consulting firm, I am pleased to see that those who knowingly obstructed justice will share in both the culpability and be held accountable for their actions," said Virginia Attorney General Jason Miyares. "The victims deserve to know the full truth and not a limited and antiseptic version of what happened. Justice deserves transparency and I am thankful to the US Department of Justice and Virginia's Medicaid Fraud Control Unit for their continued and exemplary work."

According to court documents, in May 2013, Purdue engaged McKinsey to recover lost OxyContin sales. Purdue retained McKinsey to conduct a rapid assessment of the underlying drivers of OxyContin performance, identify key opportunities to increase near-term OxyContin revenue and develop plans to capture priority opportunities. This 2013 effort was called Evolve to Excellence, or "E2E," and included McKinsey advising Purdue on how to "turbocharge" the sales pipeline for OxyContin by, among other strategies, intensifying marketing to High Value Prescribers.

Elling served as the director of the client services team for approximately 30 of McKinsey's engagements with Purdue. He had a senior, relationship-focused role with respect to the E2E engagement and was involved in securing the engagement for McKinsey.

On July 4, 2018, Elling emailed another senior partner: "Just saw in the FT that [Purdue board member] is being sued by states attorneys general for her role on the [Purdue] Board. It probably makes sense to have a quick conversation with the risk committee to see if we should be doing anything other [than] eliminating all our documents and emails. Suspect not but as things get tougher there someone might turn to us."

According to court documents, forensic analysis of Elling's McKinsey-issued laptop found that Elling in fact deleted materials related to McKinsey's work for Purdue from the laptop, as well as a Purdue-related folder from his Outlook email account. On August 22, 2018, Elling emailed himself an apparent to-do list, with the subject line, "When home." The items listed included: "delete old pur [Purdue Pharma] documents from laptop[.]" Forensic analysis of Elling's laptop by the Department of Justice's Computer Crimes and Intellectual Property Section determined that between approximately April 2018 and September 2018, Elling removed a folder titled "Purdue" (which included a subfolder entitled "Strategy") from his Windows operating system that contained more than 100 items for whom the filenames indicate they were from as far back as 2004 and included the name of the Purdue Pharma CEO at the time of the origination of the Purdue Pharma engagements with McKinsey. The CEO was

among the former Purdue Pharma executives who, in 2007, pled guilty and was convicted of misbranding in United States District Court in Abingdon.

On August 25, 2018, Elling emailed himself the following, “Remove Pur[due] folder from garbage[.]” Elling was aware of the investigations into Purdue Pharma’s conduct and knowingly deleted folders, documents, and emails from his McKinsey-issued laptop knowing these documents would be pertinent to those investigations.

Elling is scheduled to be sentenced on April 4 at 1:00 p.m. and faces a maximum penalty of 20 years in prison. A federal district court judge will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

The criminal case against Elling and McKinsey is being prosecuted by Assistant United States Attorney Randy Ramseyer of the United States Attorney’s Office for the Western District of Virginia; Assistant United States Attorneys Amanda P. Masselam Strachan and William B. Brady of the United States Attorney’s Office for the District of Massachusetts; Senior Trial Counsel Kristen M. Echemendia of the Civil Division’s Commercial Litigation Branch (Fraud Section); Trial Attorneys Jessica Harvey and Steven R. Scott of the Civil Division’s Consumer Protection Branch; and Special Assistant United States Attorneys and Assistant Attorneys General Kristin Gray and Kimberly Bolton of the Virginia Office of the Attorney General’s Medicaid Fraud Control Unit. The matter was investigated by the Food and Drug Administration - Office of Criminal Investigations, Federal Bureau of Investigation, and the Offices of the Inspector General of the Department of Health and Human Services, Department of Veterans Affairs, and Office of Personnel Management, with assistance from the Department of Justice’s Computer Crimes and Intellectual Property Section.

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